25STCV07062 25STCV07062

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Case Number: 25STCV07062 Hearing Date: July 28, 2026 Dept: 516

Judge James I.
Montgomery

Department 516

Hearing Date: July
28, 2026

Case Name: Munoz v. General Motors, LLC

Case No.: 25STCV07062

Matter: Demurrer

Moving Party: Defendant General Motors, LLC

Responding Party: Plaintiff Jorge Munoz

Tentative
Ruling: Defendant's demurrer is sustained in its
entirety.

Plaintiff Jorge Munoz ("Plaintiff") filed
his action against General Motors, LLC ("Defendant") and Does 1 through 10. The
Second Amended Complaint ("SAC") alleges five causes of action against
Defendant for: (1) violation of Civil Code section 1793.2, subdivision (d); (2)
violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil
Code section 1793.2, subdivision (a)(3); (4) breach of implied merchantability

under Civil Code sections 1791.1, 1794, and 1795.5; and (5) fraudulent inducement-concealment. Plaintiff alleges that on June 28, 2018, Plaintiff purchased a 2018 Chevrolet Silverado 1500 vehicle identification number 3GCPCREC1JG377396 ("Subject Vehicle") that was manufactured by Defendant.

Defendant demurs to Plaintiff's five causes of action. Plaintiff opposes.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice.¿(Code Civ. Proc., § 430.30, subd. (a); see also Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)¿The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law.¿(Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.)¿"In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.)¿The court ""treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law . . . ."""¿ (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.)¿In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated.¿(Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

Analysis

Meet and Confer

Pursuant to Code of Civil Procedure section 430.41, "a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . ." (Code Civ. Proc. § 430.41, subd. (a).)

Defendant contends that on June 10, 2026, the parties met and conferred. (Allison Decl., ¶ 2.) The declaration is unclear as to whether the parties met and conferred in person, by telephone, or video conference as required by Code of Civil Procedure section 430.31, subdivision (a). Thus, the parties have not met and conferred. In the interest of judicial efficiency, the Court will address the merits of Defendant's demurrer.

Demurrer

Defendant demurs to Plaintiff's five causes of action on the grounds that the statute of limitations bars the first through fourth causes of action, and Plaintiff fails to allege sufficient facts to state a cause of action as to Plaintiff's fifth cause of action.

First, Second, and Third Causes of Action – Song-Beverly Act

Code of Civil Procedure section 871.21 provides that a lawsuit seeking restitution or replacement of a motor vehicle under the Song-Beverly Consumer Warranty Act must be filed within one year after the expiration of the applicable express warranty; the statute also states, however, that, notwithstanding the above statute of limitations, a lawsuit cannot be filed more than six years after the vehicle's original delivery date—unless tolling provisions apply. (Code Civ. Proc., § 871.21, subds. (a)-(b).)

Defendant demurs to these causes of action on the grounds that the claims are barred by the newly enacted six-year statute of repose set forth in Code of Civil Procedure section 871.21. Here, the SAC alleges that the parties entered into a warranty contract on June 30, 2018. (FAC, ¶ 6.) This action was not filed until March 12, 2025—more than six years later. Thus, under the statute, Plaintiff's express warranty claims are barred.

In opposition, Plaintiff argues that Section 871.21 cannot be applied retroactively here, citing Rosefield Packing Co. v. Superior Court in and for City and County of San Francisco (1935) 4 Cal.2d 120 and Osborne v. County of Los Angeles (1979) 91 Cal.App.3d 366, 371. (Opp., 4:20-5:8.) This opposition argument is largely undeveloped.

The Court notes that Plaintiff's reliance on Osborne v. County of Los Angeles (1979) 91 Cal.App.3d 366, is unclear to support his argument. Also, Plaintiff cites Galdamez v. FCA US LLC (C.D.Cal. 2026) --- F.Supp.3d ---; 2026 WL 1047004, at *1, however, the Court is not able to locate this case, and based on the citation appears to be a federal court decision, which is not binding on this Court.

In Rosefield, the Court addressed that "a statute which merely effects a change in civil procedure may have a valid retrospective application. [Citation.] In accordance with this principle, it has been specifically held that the legislature may shorten or extend the period of the statute of limitations, or similar time statutes relating to procedure, and that the changed period may be made applicable to pending proceedings. [Citation.]" (Rosefield Packing Co. v. Superior Court in and for City and County of San Francisco (1935) 4 Cal.2d 120, 122 (citations omitted.) (Rosefield).) The "important qualification for the rule" is whether the statute shortened the time limit provision, is made retroactive, with reasonable time for a party to avail himself before the statute takes effect. (Ibid.; see Aronson v. Superior Court (1987) 191 Cal.App.3d 294, 297.) However, if the statute operates immediately, or shortens the time period without a reasonable opposition to exercise his remedy, application of the statute retroactively would be unconditional. (Rosefield, supra, 4 Cal.2d at p. 122-23.)

Further, at issue here is not a statute of limitations, but a statute of repose.

"[S]tatutory time bars can be divided into two categories: statutes of limitations and statutes of repose. Both "are mechanisms used to limit the temporal extent or duration of liability for tortious acts," but "each has a distinct purpose." (Cal. Pub. Employees' Ret. Sys. v. ANZ Sec., Inc. (2017) 582 U.S. 497, 504.) And "[w]hereas statutes of limitations affect a remedy, statutes of repose extinguish a right of action after the period has elapsed. [Citations.]" (PGA West Residential Assn., Inc. v. Hulven Internat., Inc. (2017) 14 Cal.App.5th 156, 177.)

Here, AB 1755 became law on September 29, 2024, but did not go into effect until January 1, 2025.

Thus, litigants were given three months to bring their claims that would otherwise be subject to the statute of repose. Under the circumstances, this three-month period is a reasonable time to bring a claim in light of a six-year statute of repose. (Cf. Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd. (2005) 35 Cal.4th 1072, 1092.)

Next,
Plaintiff argues Defendant's ability to invoke section 871.21's statutes of repose is contingent on whether it opted into the new procedures under section 871.29. Plaintiff further contends that the laws applicable to the opt-in process were amended under Senate Bill No. 26, and those amendments will not become effective until July 1, 2025; as such, actions commenced prior to July 1, 2025, are not affected by section 821.21's statutes of repose.

Plaintiff’s interpretation of
Code of Civ Procedure section 871.29 is contrary to the plain language of the statutes. Plaintiff relies on the California
Legislative Counsel’s Digest: “[t]his bill [SB 26] would provide that certain procedures described above would instead become operative on July 1, 2025.” (Opp., 6:13-15 [emphasis added].)

Importantly, the July 1, 2025,
effective date applied only to specific provisions. Specifically, SB 26 amended Code of Civil Procedure section 871.24 to expressly state that “This section shall become operative on July 1, 2025.” Tellingly, no such similar language is contained in Section 871.21, 871.29, or 871.30. Thus, Plaintiff’s assertion that these provisions therefore became effective only as of July 1, 2025, is not supported by legislative history or the plain language of the statutes. Rather, Section 871.21 was enacted as part of AB 1755, and it became effective on January 1, 2025.

Thus, Section 871.21 was
in effect at the time Plaintiff filed this action.

Finally, Plaintiff argues that
the claims were tolled. Specifically, Plaintiff argues the claims were tolled by Plaintiff’s delayed
discovery of Defendant's breaches of the warranty.

The statute provides specific circumstances that toll this statute of repose: (1) pursuant to Section 1793.22, subdivision (c); (2) for the time the vehicle is out of service for repair for any nonconformity; and (3) for the time period after a pre-suit notice is provided to the manufacturer per § 871.24, not to exceed 60 days. (Code Civ. Pro., § 871.21, subd. (c).)

Defendant argues that this list of tolling circumstances is exhaustive. Unlike in other statutory circumstances, Section 871.21 does not contain express language indicating that the list is exclusionary. (See e.g., McDonald v. Antelope Valley Community College Dist. (2008) 45 Cal.4th 88, 105 [discussing how Code of Civil Procedure sections 340.6 and 366.2 each contain an exhaustive list of bases for tolling the statute of limitations provided].)

Under the circumstances here, the Court agrees that had the Legislature desired to apply additional tolling doctrines to the new six-year statute of repose applicable to Song-Beverly claims, it could and would have expressly done so. (See Gikas v. Zolin (1993) 6 Cal.4th 841, 852 [“The expression of some things in a statute necessarily means the exclusion of other things not expressed.”].) That is, the Legislature did not provide for any additional tolling mechanisms, and the context of its passage suggests it did not intend to provide any.

Legislative history supports limits on tolling. The bill’s author noted that “in recent years a flurry of civil actions have been filed under the lemon law statutes and now discovery disputes and protracted settlement processes are serving to delay the courts processing of these cases. As a result, California consumers are being denied justice and automobile manufacturers are facing significant legal uncertainty.” (2023 California Assembly Bill No. 1755, California 2023-2024 Regular Session, 8/26/2024.) “AB 1755 is a compromise measure between consumer advocates and automobile manufacturers that seeks to break the civil litigation log jam currently plaguing lemon law disputes.” (Ibid.) The analysis continues: “First, the bill constricts the timeline for bringing such actions. It requires such actions to be commenced within one year after the expiration of the applicable express warranty, but in no case to be brought more than six years after the date of original delivery, subject to specified tolling." (Ibid. [emphasis added].)

Finally, there are no factual allegations in the SAC to support any of the three tolling provisions provided for in Section 871.21. (SAC, ¶¶ 35-46.) Thus, in finding that Section 871.21 applies to Plaintiff's SAC, the failure to allege any facts showing the claims are tolled renders the first, second, and third claims barred.

Defendant's demurrer to the first, second, and third causes of action is sustained.

Fourth Cause of Action – Breach of Implied Warranty

"'Implied warranty of merchantability' or 'implied warranty that goods are merchantable' means that the consumer goods meet each of the following: (1) Pass without objection in the trade under the contract description. (2) Are fit for the ordinary purposes for which such goods are used. (3) Are adequately¿contained, packaged, and labeled. (4) Conform to the promises¿or affirmations of fact made on the container or label." (Civ. Code, § 1791.1,¿subd. (a).)¿

"California courts have held that the statute of limitations for an action for breach of warranty under the Song–Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the Uniform Commercial Code: section 2725 of the Uniform Commercial Code." (Mexia v. Rinker Boat Co., Inc. (2009) 174 Cal.App.4th 1297, 1305–1306 (Mexia).) California Uniform Commercial Code's (UCC) four-year statute of limitations for breaches of warranty applies to Song-Beverly breach of express warranty claims and breach of implied warranty claims. (Com. Code, section 2725, subd. (1);¿Krieger v. Nick Alexander Imports, Inc.¿(1991) 234 Cal.App.3d 205, 214-15.)

¿

There is no delayed discovery

tolling for a breach of implied warranty claim. (Com. Code, section 2725, subd. (2);¿Mexia, supra, 174 Cal.App.4th at p. 1310-1311.) However, "where a warranty explicitly extends to future performance of the good and discovery of the breach must await the time of such¿performance[,] the cause of action accrues when the breach¿is or should have been discovered." (Com. Code, section 2725, subd. (2);¿Krieger, supra,¿234 CalApp.3d at pp. 218-219.)¿"In the case of a latent defect, the implied warranty is breached by the existence of the unseen defect, not by its subsequent discovery." (Mexia,¿supra, 174 Cal.App.4th 1297 at p. 1305.)¿¿

Here, the SAC alleges that Plaintiff purchased the Subject Vehicle on or about June 30, 2018. (SAC, ¶ 6.) Plaintiff filed his action on March 12, 2025. (Compl., p. 1.) On the face of the Complaint, the implied warranty claim was brought over six years and eight months after tender of delivery, which is beyond the four-year statute of limitations. Plaintiff argues that the delayed discovery doctrine applies and that he seeks recovery under the Song-Beverly Act and not the Commercial Code. However, courts have consistently held that delayed discovery does not apply to implied warranty claims under Commercial Code section 2725, absent an express warranty explicitly extending to future performance. (Cardinal Health, (2008) 169 Cal.App.4th 116,132.) As mentioned in Mexia, the Song-Beverly Act follows the same statute of limitations as the Uniform Commercial Code section 2725. (Mexia, supra, 174 Cal.App.4th at p. 1305–1306.)

While Plaintiff alleges that he was aware of Defendant's wrongful conduct prior to the filing of his action, the allegations do not toll, or delay accrual of an implied warranty claim as a matter of law. (SAC, ¶¶ 30-42.) The SAC does not allege the existence of any express warranty extending the term of the implied warranty to future performance, nor does it allege facts sufficient to bring the claim within any recognized exception. Although the SAC generally pleads tolling, California courts have rejected the application of such doctrines to implied warranty claims where the statute expressly fixes accrual at tender of delivery. (Cardinal Health, supra, 169 Cal.App.4th at p. 133–134.)

The SAC affirmatively establishes the date of purchase and the filing date, and that the applicable statute of limitations bars the claim as a matter of law. Moreover, because the defect cannot be cured by amendment without contradicting the pleaded purchase date, leave to amend would be futile.

Accordingly, the demurrer to the fourth cause of action for breach of implied warranty of merchantability is sustained without leave to amend.

Fifth Cause of Action – Fraudulent Inducement-Concealment

““The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 40 (Rattagan).) The facts¿constituting¿the alleged fraud must be alleged factually and specifically as to every element of¿fraud, as the policy of “liberal construction” of the pleadings will not ordinarily be invoked. (Lazar v. Superior Court¿(1996) 12 Cal.4th 631, 645 (Lazar).)

To state a claim for fraudulent inducement-concealment, Plaintiff must allege: (1) the defendant “concealed or suppressed a material fact,” (2) the defendant was “under a duty to disclose the fact to the plaintiff,” (3) the defendant “intentionally concealed or suppressed the fact with the intent to defraud the plaintiff,” (4) the plaintiff was “unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact,” and (5) “as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 310-311 (Bigler-Engler); Rattagan, supra, 17 Cal.5th at p. 40.)

Absent a fiduciary relationship between the parties (which Plaintiff does not allege here), a duty to disclose can arise in only three circumstances: (1) the defendant had exclusive knowledge of the material fact; (2) the defendant actively concealed the material fact; or (3) the defendant made partial representations while also suppressing the material fact. (Bigler-Engler, supra, 7 Cal.App.5th at

p. 311; LiMandri v. Judkins (1997) 52 Cal.App.4th 326, 336 (LiMandri).) However, the duty to disclose only arises under any of these circumstances if there is “the necessary relationship giving rise to a duty to disclose as a ‘transaction’ between the plaintiff and defendant ….” (Bigler-Engler, supra, 7 Cal.App.5th at p. 311; Rattagan v. Uber Technologies, Inc., supra, 17 Cal.5th at 40 [requiring a “preexisting relationship between the parties, such as ‘between seller and buyer ... or parties entering into any kind of contractual agreement.’ ”] Warner Construction Corp. v. City of Los Angeles (1970) 2 Cal.3d 285, 294 [“In transactions which do not involve fiduciary or confidential relations”].)

Defendant argues that Plaintiff did not allege a transactional relationship between the parties that imposes a duty upon it.

In opposition, Plaintiff claims that his cause of action for fraudulent inducement-concealment is sufficiently pleaded.

According to some governing law, a relationship supporting a duty to disclose is not created by manufacturers’ advertisements of products to consumers, or profits from the sale of their products to consumers. (Bjoin v. J-M Mfg. Co. (2025) 113 Cal.App.5th 884, 902 (Bjoin). But see, e.g., Bader v. Johnson & Johnson (2023) 86 Cal.App.5th 1094, 1132 [“A proper instruction under Bigler-Engler thus would have instructed the jury here to consider whether similar evidence of transactions, advertising, or J&J's direct monetary benefit supported the transactional requirement.”].) Moreover, in Bader, the Court relied on Bigler, where the court stated that “a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (Bigler-Engler, supra, 7 Cal.App.5th at p. 312.) The SAC lacks any allegations that Defendant directly advertised to Plaintiff, nor that Defendant profited from Plaintiff’s individual purchase. (Bjoin, supra, 113 Cal.App.5th at p. 904.)

In Dhital v. Nissan North America, Inc. (2022) 84 Cal.App.5th 828, the court found that the plaintiffs’ statutory warranty claims under the Song-Beverly Act were the equivalent of contract claims for the purposes of determining whether the economic loss rule applies. This did not, however, establish a duty to disclose. (Dhital, 84 Cal. App. 5th at 838, fn. 3.) Only later in its decision did the Dhital court state that the plaintiffs' allegations were sufficient to overcome the defendant's argument that there was no buyer-seller relationship giving rise to a duty to disclose. (Id. at 844.) The Dhital court explained that the plaintiffs sufficiently alleged that the requisite buyer-seller relationship existed because the plaintiffs had alleged that they bought the car from a Nissan dealership, Nissan backed the purchase with an express warranty, and Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to customers. (Id.)

In this case, Plaintiff's allegations are distinguishable from Dhital because Plaintiff does not allege that the dealer is Defendant's agent.

Thus, the Court sustains Defendant's demurrer as to Plaintiff's cause of action for fraudulent inducement-concealment for failure to allege sufficient facts to constitute a cause of action.

Leave to Amend

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 [court shall not "sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment"]; Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 ["A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment."]; Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that the pleading can be successfully amended. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

While the Court questions whether the identified defects can be cured by amendment, Plaintiff will be given the opportunity to amend. The Court grants leave to amend as to the first, second, third, and fifth causes of action.

Conclusion

Defendant’s demurrer is sustained as to Plaintiff’s entire FAC.

Plaintiff shall not have leave to amend as to her fourth cause of action.

Plaintiff shall have leave to amend as to his first, second, third, and fifth causes of action and must file no later than August 12, 2026.